

to answer, and molested, that he cannot prosecute his suit, he is then privileged justly, and without wrong, because his prosecutor elsewhere might have sued, if he pleas'd, in the Common Pleas.

[155] All privilege is either for officers, clerks, or attorneys of the Court, not to be sued elsewhere; or for persons impleading or impleaded, having priority of suit in the Common Pleas, arrested or sued in other jurisdictions; or for the menial servants of such officers.

These privileges are not detrimental to any, because whoever hath occasion to sue an officer, or any other, having priority of suit as before, is not restrained to sue them in the Common Pleas, but is restrained from suing elsewhere. And this is the true privilege of the Court.

And the way of enjoying this privilege, was, by writs of privilege to supersede the proceeding of other Courts against such, who had the privilege of the Common Pleas, as is yet ordinary in the cases of attorneys, officers, and clerks.

And in such writs the cause of privilege is mentioned, and as to their menial servants, if not true, may be travers'd. As 22 H. 6, 38. Debt was brought against baron and feme, and a supersedeas out of the Chancery, was cast for the baron, as menial servant to an officer of Chancery; whereupon the plaintiff said it was contain'd in the writ that the husband was menial servant to R. J. del Chancery, whereas he was not his menial servant, and thereupon issue was taken. But quere of the officers appearing of record in the Court may be travers'd.

Hence it follows, though proceeding in other Courts against a person privileged in Banco, might be superseded, yet it was when the matter proceeded upon in such Courts, might as well be prosecuted in the Common Bench; but if a privileged person, in Banco, were sued in the Ecclesiastical Courts, or before the High Commission, or constable and marshal, for things whereof the Common Pleas had no cognizance, they could not supersede that proceeding by privilege. And this was the ancient reason and course of privilege.

1. Another way of privilege, by reason of suit depending in a Superior Court, is, when a person impleading or impleaded, as in the Common Bench, is after arrested in a civil action or plaint in London, or elsewhere, and by habeas corpus is brought to the Common Pleas, and the arrest and cause return'd; if it appear to the Court, that the arrest in London was after the party ought to have had the privilege of the Common Pleas; he shall have his privilege allow'd, and be discharg'd of his arrest, and the party left to [156] prosecute his cause of action in London, in the Common Pleas, if he will.

2. If the cause of the imprisonment return'd, be a lawful cause, but which cannot be prosecuted in the Common Pleas, as felony, treason, or some cause wherein the High Commission, Admiralty, or other Court, had power to imprison lawfully, then the party imprison'd which did implead, or was impleaded in the Common Bench before such imprisonment, shall not be allow'd privilege, but ought to be remanded.

3. The third way is, when a man is brought by habeas corpus to the Court, and upon return of it, it appears to the Court, that he was against law imprison'd and detain'd, though there be no cause of privilege for him in this Court, he shall never be by the act of the Court remanded to his unlawful imprisonment, for then the Court should do an act of injustice in imprisoning him, de novo, against law, whereas the great charter is, quod nullus libet homo imprisonetur nisi per legem terræ; this is the present case, and this was the case upon all the presidents produc'd and many more that might be produc'd, where upon habeas corpus, many have been discharg'd and bail'd, though there was no cause of privilege in the case.

This appears plainly by many old books, if the reason of them be rightly taken, for insufficient causes are as no causes return'd; and to send a man back to prison for no cause return'd, seems unworthy of a Court.

If a man be impleaded by writ in the Common Pleas, and is after arrested in London upon a plaint, there upon a habeas corpus he shall have privilege in the Common Pleas, if the writ, upon which he is impleaded, bear date before the arrest in London, and be return'd, although the plaintiff in the Common Pleas be nonsuit, essoin'd, or will not appear, and consequently the case of privilege at an end before the corpus cum causa return'd; but if the first writ be not return'd, there is no record in Court that there is such a defendant.

The like where a man brought debt, in Banco, and after for the same debt arrested